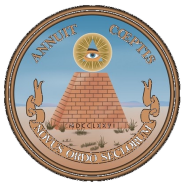


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Eternal Sovereignty



EMPEROR'S SEAL
Sidi Mohammed III · 1786



GREAT SEAL (REVERSE)
United States · Grantee



CELESTIAL SEAL
Chapters 20–25

EMPIRE OF MOROCCO

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1786 Māliki Sharia Hiba (Sovereign Unilateral Grant) · Recorded at 8 Stat. 484 (1836)

INTERNATIONAL DOCUMENT · CHAPTER 4 ʿALĀMA (MARK OF RECOGNITION) · GRANT INSTRUMENT

EXECUTIVE-LEGAL-BRIEF-v4.2

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EXECUTIVE LEGAL BRIEF

The 1786 Mālikī Sharia Hiba (Sovereign Unilateral Grant)

Ministerially Recorded at 8 Stat. 484 (1836) — Implications for U.S.-Bound Commerce

Prepared by the Empire of Morocco Global Trade Ecosystem
Operational channel: Sut-Typhon · Governed by the Consular Office of the Empire of Morocco
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1. What This Document Is

The instrument popularly known as the "Treaty of Peace and Friendship" between the Empire of Morocco and the United States is the oldest unbroken international relationship in U.S. history. It is referenced in the U.S. Statutes at Large (Vol. 8, pp. 484–487), listed in the U.S. State Department's *Treaties in Force* (2026, p. 301), and was the subject of an International Court of Justice proceeding in 1952 (*Rights of Nationals of the United States of America in Morocco*, I.C.J. Reports 1952, p. 176).

The instrument's legal character has been systematically misrepresented. It is not a bilateral treaty between equals. The controlling instrument is the **1786 Mālikī Sharia Hiba** — a unilateral sovereign grant sealed by Sidi Mohammed III, Emperor of Morocco, at Marrakesh on 23 June 1786, and delivered to U.S. Agent Thomas Barclay on 28 June 1786. The original is in Arabic. The English-language document codified at 8 Stat. 484 (1836) is a **ministerial recordation** — a grantee-internal entry into the U.S. statutory record stack performed entirely by U.S. officials (Consul Leib, the Senate, the President). It carries no sovereignty and does not alter the 1786 hiba.

Twelve separate U.S. government officials and institutional acts — across 229 years (1785–2014) and including a President, a Consul, a State Department Treaty Editor, the U.S. Senate, the Library

of Congress, and the United States itself before the International Court of Justice — have admitted that the instrument is a unilateral sovereign grant from a superior sovereign (the Emperor of Morocco) to an inferior grantee (the United States) — with two beneficiary classes established by the grant: **primary beneficiaries** (Moors / subjects of the Empire of Morocco) and **derivative debtor beneficiaries** (U.S. citizens, who receive grant protections derivatively through the trustee's administration). The full estoppel chain is documented in the parallel Nationality Declaration (LN/NCT-DARRELL-EL-001, Section III).

2. Five Foundational Admissions by U.S. Government Officials

The following five admissions are foundational. They are augmented by seven additional admissions (1802–2014) detailed in the Nationality Declaration estoppel chain. Together, twelve admissions bind the United States under estoppel by admission.

1785 — The U.S. Sought a Treaty

> *We the United States of America in Congress Assembled… giving and granting to them… full Power and Authority… to confer, treat and negotiate with the Ambassador, Minister, Commissioner, or other Agent of His Majesty the Emperour of Morocco, of and concerning a Treaty of Amity and Commerce…*
>
> — American Commissioners' Letter of Credence (Adams, Franklin, Jefferson), March 11, 1785. Founders Online, National Archives.

1786 — The American Agent Refused to Sign an Acceptation

> *I was asked to sign an acceptation of the articles on the part of the United States; but as the treaty was not drawn up in the form expected, I excused myself.*
>
> — Thomas Barclay, U.S. Agent, to John Adams & Thomas Jefferson, September 18, 1786. Founders Online, National Archives.

1789 — President Washington Acknowledges Inferior Grantee Status

> *May the Almighty bless your Imperial Majesty, our great and magnanimous Friend, with his constant guidance and protection. … Within our Territories there are no Mines, either of Gold, or Silver, and this young Nation, just recovering from the Waste and Desolation of a long War, have not, as yet, had Time to acquire Riches by Agriculture and Commerce.*
>
> — President George Washington to Emperor Sidi Mohammed III, December 1, 1789. Founders Online, National Archives.

1836 — U.S. Consul Confirms Grant Form

> *The Treaty, it will be observed, being sealed by the Emperor according to the diplomatic custom observed in this Empire, bears the form of a grant. Hence, it would be out of rule to deface the original with my signature or seal.*
>
> — James R. Leib, U.S. Consul at Tangier, Despatch No. 39, October 11, 1836.

1931 — State Department Treaty Editor

> *The theory seems to have been somewhat similar to our notion of a unilaterally executed grant and its delivery, for the text in the "book" was not signed or sealed on behalf of the other party.*

— Hunter Miller, *Treaties and Other International Acts of the United States*, Vol. 2, p. 225 (GPO, 1931).

Cumulative estoppel effect: Adams, Franklin, and Jefferson were given "full Power and Authority… to confer, treat and negotiate… a Treaty of Amity and Commerce." The Emperor delivered a unilateral grant instead. The U.S. accepted it. The chain extends through seven additional admissions to 2014 (see Nationality Declaration §III), spanning 229 years across all three branches of the federal government. Under estoppel by admission — and, with respect to the 1952 ICJ admission, under *allegans contraria non audiendus est* — the United States is foreclosed from any contrary position.

Admission by Conduct — The United States Before the ICJ (1952)

In the 1952 case *Rights of Nationals of the United States of America in Morocco* (France v. United States), the U.S. government pleaded **"the Treaties of 1787 and 1836"** — the ministerial recordation chain of the 1786 Arabic Hiba. The Court held unanimously for the United States "by virtue of the provisions of its Treaty with Morocco of September 16th, 1836," stating that the 1836 Treaty "replaced an earlier treaty … concluded in 1787" and that "the two treaties were substantially identical in terms and Articles 20 and 21 are the same in both." Under basic principles of litigation competence, a sovereign nation does not rest its international claims on a legally dead or expired instrument. By pleading the chain that records the 1786 grant — and prevailing on it — the United States admitted—by its own conduct—that the instrument system is living law, judicially enforced 166 years after the grant was sealed. This behavior estops the United States from now contending that the instrument is dead, expired, or without legal force — *allegans contraria non audiendus est*.

What the ICJ did not address — 1786 vs. 1787, and why the dates must not be confused. The controlling instrument is the **1786 Arabic hiba**: sealed by the Emperor at Marrakesh on 23 June 1786 and delivered to U.S. Agent Thomas Barclay on 28 June 1786 — in force from **1786** by its own execution and delivery. The "Treaty of 1787" named in the Court's judgment is the grantee's **English-language rendering**, ratified by the U.S. Congress in 1787; the "Treaty of 1836" is the further ministerial recordation of the same instrument at 8 Stat. 484. Both are **non-authoritative English versions**: the Emperor sealed only the Arabic original, and the English texts were prepared and entered into the U.S. statutory record by the grantee's own officials, for the grantee's internal use. The Court therefore construed the grantee's recorded English chain; it did not interpret the sealed 1786 Arabic hiba, which was not the text before it — and did not need to be: by pleading the chain that records the 1786 grant, the United States admitted the grant the chain records. The 1786 hiba owes none of its force to the 1787 ratification or the 1836 recordation; those acts *record* the grant — they do not create it.

Effect: The United States' voluntary litigation conduct before the ICJ — pleading the treaty chain that records the 1786 grant, and prevailing unanimously on the 1836 instrument that records it — constitutes admission by conduct (*al-iqnāʿ bi-l-fiʿl*). This is the strongest form of estoppel: a sovereign nation does not rest its claims before the world's highest court on a legally dead instrument. Having

obtained favorable recognition on the recorded chain, the United States is foreclosed from now contending that the instrument is dead, expired, or without legal force. The doctrine of *venire contra factum proprium non valet* prohibits a party from contradicting its own prior conduct. This admission by conduct binds the United States under both domestic estoppel and international-law estoppel.

3. Why the Grant Cannot Be Terminated

The 1786 Mālikī Sharia Hiba is irrevocable under four U.S. Supreme Court holdings:

Legal Authority	Holding
Fletcher v. Peck (1810)	A grant, once delivered, is irrevocable and binds successor governments.
Society v. Town of Pawlet (1823)	Treaty grants survive changes in sovereignty.
Chae Chan Ping v. United States (1889)	Treaty obligations are supreme law until properly terminated.
Cook v. United States (1933)	A later statute cannot abrogate treaty rights without clear congressional intent.

The English translation of Chapter 25 contains a twelve-month termination notice clause. This clause is void ab initio under Mālikī hiba doctrine and absent from the 1786 Arabic original. A tāmm hiba — perfected by qabḍ — is lāzima, mustaqirra, and ghayr qābila li-l-rujūʿ. A term limit on a perfected hiba is a logical impossibility. Per the certified translation (Miller vol. 2, Doc. 14, p. 223), Chapter 25 reads: “this treaty of peace shall remain permanent (دائمة, dāʾima), if God please, by God’s might and power, a period from fifty years.” No notice clause.

The fifty-year clause stands in the sealed Arabic and is stricken from within it as repugnant to the preamble’s permanence — the Mālikī repugnant-condition rule: the condition falls, the grant stands. The twelve-month termination clause is a grantee-internal addition with no operative force against the grantor.

4. Commercial Implications

The 1786 Hiba contains 25 articles (faṣl — chapters, conventionally rendered “Article”) creating vested, non-discretionary protections for commerce operating under the grant’s authority:

Protection	Article	Commercial Effect
MFN Tariff Parity	Ch. 14	Best-available tariff rate, dynamically updated.
Zero Detention	Chs. 15, 18, 19	No vessel detained in port “on any pretence whatever.”
Duty-Free Emergency	Ch. 8	No duty whatsoever on distressed cargo.

Free Passage	Ch. 3	Goods pass free regardless of origin or carrier.
Office Corridor	Chs. 20–22	The venue of record, distributed by the parties: the office decides between the parties (Ch. 20); the Empire's domestic tribunal judges by the Sacred Law, without increase or decrease (Ch. 21); the office stands in the heir's place (Ch. 22).
Universal Indulgence	Ch. 24	Any benefit to any other power extends automatically.

These protections are not incentives, subsidies, or trade preferences. They are vested property rights that attached upon execution of the grant in 1786. They cannot be repealed by Congress, revoked by executive order, or conditioned on administrative approval.

5. Trust / Beneficiary Structure — Two Classes

Under the law of grants and trusts, the relationship is vertical and non-invertible: the Emperor of Morocco (grantor) retains superior sovereignty; the United States (grantee) received only delegated usufruct rights and a franchise as trustee. The grantee can never become the grantor.

The United States holds title as trustee for two beneficiary classes established by the grant. **Primary beneficiaries** are Moors / subjects of the Empire of Morocco. The grant runs directly from the grantor to this class; equitable interest is original. This class holds priority on all matters touching the trust corpus. **Derivative debtor beneficiaries** are U.S. citizens, who receive grant protections (free passage, MFN footing, consular protection of estates, and other Article-by-Article protections naming "citizens of the United States") derivatively through the trustee's administration of the franchise.

The structural priority matters for commercial counterparties. Commercial operations under grant-mode activation operate through the primary-beneficiary framework — the trustee owes the primary class the full Volume K Ten Fiduciary Duties. The construction of the grant is governed by twelve interlocking maxims, all adverse to the grantee — including the Volume K misidentification doctrine (Ch. 11, extended to inter-class allocation: the trustee's persistent inversion of beneficiary priority — treating derivative debtor beneficiaries as if they were primary, treating actual primary beneficiaries as strangers to the trust — is itself a fiduciary breach), Bynkershoek's *interpretatio stricta* (grants construed against the grantee), the spoliation maxim (*omnia praesumuntur contra spoliatorem*), *nullum tempus occurrit regi* (no time runs against the sovereign), and the Mālikī parallel *al-amīn lā yuṣaddaq illā bi-bayyina* (the trustee is not believed except by clear evidence). Full doctrinal apparatus is in the parallel Nationality Declaration §V.

5.5. Operative Gateway Status — For Commercial Counterparties

The 1786 Mālikī Sharia Hiba operates through three structural gateways. Commercial counterparties making forum-selection and recognition decisions should understand each.

Gateway 1 — Identification / Primary Beneficiary Class Membership: SATISFIED. The affiant operating grant-mode commerce is a Moor / subject of the Empire of Morocco — primary beneficiary, original equitable interest, identified by the ʿalāma under Chapter 4. Not a derivative debtor

beneficiary (U.S. citizen); not a member of the trustee class. The primary-beneficiary status is the operating capacity under which grant protections attach.

Gateway 2 — Fixation of the Record: SATISFIED at execution. Under the enrollment doctrine (Blackstone Bk II Ch 20; Volume K Ch 7 §3), the affiant's executed nationality instrument and supporting attestations are enrolled evidence from execution forward — "perpetual testimony" of the affiant's status, independent of any subsequent administrative validation. The Library of Congress's 2014 certified reproduction of 8 Stat. 484 is the doctrinal precedent for federal-record-fixation.

Gateway 3 — The Office Corridor (Chapters 20–22): INVOKED as the grant's own peace-preserving venue — the venue of record, distributed by the parties. Venue lies in the **consular jurisdiction** for cases involving the United States, its citizens, and their protected persons or protégés — the office decides between the parties, and government aid is granted immediately on requirement (Ch. 20). Venue lies in the **Empire's own domestic tribunal** for cases between Moors and for every mixed case between Moors and citizens of the United States or their protected persons or protégés — judgment by the Sacred Law, without increase or decrease, in the presence of the office (Ch. 21). The office stands in the heir's place (Ch. 22).

Commercial counterparties operating under grant-mode activation are **protected persons of the Empire of Morocco**: cases involving them in that capacity are heard in the Chapter 21 Domestic Tribunal of the Empire of Morocco — not in a forum of the grantee's courts. U.S. domestic courts were never granted competence over grant-protected matters; disputes attempted there are breaches of Chapter 20.

6. What This Is Not

Not a sovereign citizen theory. This is based on a treaty referenced in the U.S. Statutes at Large, recognized by the I.C.J., and currently listed in the State Department's *Treaties in Force* (2026, p. 301).

Not an incentive program. Incentive programs are conditional, temporary, and revocable. A sovereign grant is unconditional, perpetual, and irrevocable.

Not untested legal theory. The grant's existence is undisputed. Its irrevocability is established by four U.S. Supreme Court decisions. The only novel element is applying it to modern commercial operations.

7. Next Steps

The Empire of Morocco Global Trade Ecosystem (operational channel: Sut-Typhon) offers grant-mode activation for enterprises with U.S.-bound commerce. The engagement model is $0 upfront;

the client retains 10% of independently verified savings. Pilot limited to 5 enterprises. 30-day activation timeline.

- Schedule a briefing: calendly.com/john-darrell-el
- Contact directly: john.darrell.el@gmail.com
- Verify eligibility: https://empireofmoroccotrade.com

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